

Ramanlal Deochand Shah vs State Of Maharashtra & Anr on 5 July, 2013

Equivalent citations: AIR 2013 SUPREME COURT 3452, 2013 (14) SCC 50, 2013 AIR SCW 4591

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Bench: Gyan Sudha Misra, T.S. Thakur

REPORTABLE

IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

CIVIL APPEAL NO.5160 OF 2013

(Arising out of S.L.P. (C) No.354 of 2012)

Ramanlal Deochand Shah ...Appellant

Versus

The State of Maharashtra & Anr. ...Respondents

WITH

CIVIL APPEAL NO.5161 OF 2013

(Arising out of S.L.P. (C) No.395 of 2012)

Kantilal Manikchand Shah ...Appellant

(since deceased by his L.Rs.)

Versus

The State of Maharashtra & Anr. ...Respondents

JUDGMENT

T.S. THAKUR, J.

1. Leave granted.

2. These appeals arise out of two separate but similar orders dated 14th June, 2011 and 16th March, 2011 passed by the High Court of Judicature at Bombay whereby First Appeal Nos.179 of 1992 and 751 of 1992 filed by the respondent-State of Maharashtra have been allowed and the judgment and order passed by the Reference Court enhancing the amount of compensation payable to the appellants-land owners to Rs.85/- per square meter set aside.

3. In SLP (C) No.354 of 2012 the appellants prayed for enhancement of compensation payable towards compulsory acquisition of plots no.33, 34, 45 and 46 measuring 1366 square meters each, situated at village Saidapur, Taluq-Karad, District Satara, Maharashtra. The public purpose underlying the acquisition was the setting up of a Polytechnic Engineering College at Karad. The appellant-land owners claimed compensation @ Rs.25/- per sq. ft. The Special Land Acquisition Officer, Satara, however, made an Award dated 14th March, 1988 determining the compensation @ Rs.26.25 per sq. mtr. only. Dissatisfied with the award made by the Collector the appellant-land owners got the matter referred to the Civil Court for determination of the market value of the land under Section 18 of the Land Acquisition Act besides solatium and interest payable on the same. A similar reference was also made in SLP (C) No.395 of 2012 for plot no. 47 admeasuring 1366 sq. mtrs. of the same village.

4. The claim made by the appellant-land owners was contested by the respondent-State giving rise to the following issues in Reference No.12 of 1988 relevant to SLP (C) No.354 of 2012:

(i) Is the claimant entitled to Rs.9,27,064/- in addition to Rs.2,31,716/- from the opponent-referee by way of compensation as claimed?

(ii) Is the claimant entitled for interest at the rate of 15% p.a. on the amount of compensation as claimed?

(iii) Is the claimant entitled to solatium as claimed?

(iv) What order?

5. Similar issues were framed in the connected Reference No.4 of 1988 relevant to SLP (C) No.395 of 2012, save and except that the total amount claimed in the same was lower having regard to the lesser number of plots acquired in that case.

6. The Reference Court answered the issues in favour of the appellants and enhanced the compensation payable to them to Rs.85/- per sq. mtr. besides interest at the stipulated rates by similar but separate Awards both dated 31st January, 1991.